



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Dustin Edwards #554

Work Assignment: Troop/Division - A; Post/Unit – 3 - Cartersville

INCIDENT REPORT # DPS00159975

Related Crash Reports: C000940820 ; _____ ; _____

P.I.T. Involved: Yes

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 02/05/2024

Time: 1520 Hours

Location: Post 3 - Cartersville

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, Lt. Seth Thompson #35, SGT Steve Langham #192, CPL Jacob Tow #337 and TFC Dustin Edwards #554.

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 01/28/2024

Time: 0448 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On January 28, 2024, at approximately 0448 hours, TFC Edwards overheard Bartow County radio traffic indicating that there was a pursuit on Interstate 75. TFC Edwards notified the Troop A Communications Center by radio and asked them to confirm the information with the Bartow County 911 Center. The Communications Center advised TFC Edwards that an Emerson Police Officer was pursuing a Dodge Challenger northbound on I-75 near mile marker 299 and they were requested assistance from the Georgia State Patrol. When TFC Edwards observed the Dodge and the Emerson Police unit pass his location, he activated his emergency equipment and joined the pursuit.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

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N/A

If Yes, explain: An Emerson Police Officer was in pursuit of a Dodge Challenger, traveling northbound on I-75 in Bartow County and requested the Georgia State Patrol's assistance with the pursuit. The Emerson Police Officer had attempted to stop the suspect for speeding and racing.

4. List the number and identity of other agencies and officers involved in the pursuit.

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N/A

If needed, list: Emerson Police Officer Osmin Yildirim #210 was initially involved in the pursuit.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

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N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

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Yes

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No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

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Yes

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No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

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N/A

If Yes, explain:

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

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Yes

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No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: When TFC Edwards overheard Bartow County radio traffic indicating that there was a pursuit on Interstate 75, he notified the Troop A Communications Center by radio and asked the dispatchers to confirm the information with the Bartow County 911 Center. Senior Dispatcher High received this information and contacted the Bartow County 911 Center by telephone. The Bartow County dispatcher provided a description of the vehicle, along with the tag number and reason for the initial traffic stop.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☐ N/A

If Yes, explain: When TFC Edwards overheard Bartow County radio traffic indicating that there was a pursuit on Interstate 75, he notified the Troop A Communications Center by radio and asked the dispatchers to confirm the information with the Bartow County 911 Center. Senior Dispatcher High received this information and contacted the Bartow County 911 Center by telephone. The Bartow County dispatcher provided a description of the vehicle, along with the tag number and reason for the initial traffic stop.

5. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes

☐ No

If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A

If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit was initiated on I-75 North, just south of Exit 310. The violator exited off the interstate at GA 53 (exit 310), traveled through the intersection and back onto I-75 North. The pursuit continued northbound to its termination point, just north of GA 225 (mile marker 317). The pursuit traveled 7.8 miles and lasted approximately 3 minutes and 27 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes

☐ No

If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: The pursuit traveled into the territory of Post 43 - Calhoun, however, there were no other Troopers in the area to turn the pursuit over to.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit would support a charge of Felony fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No If Yes, explain: TFC Edwards stated he experienced an adrenalin rush during the pursuit.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A Explain: TFC Edwards terminated the pursuit by utilizing the Precision Immobilization Technique (PIT). TFC Edwards made contact with the right rear side of the suspect's vehicle and the left front of his patrol vehicle and initiated the PIT. The PIT caused the suspect's vehicle to rotate clockwise and travel off the east side of the roadway where it struck an embankment.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TFC Edwards utilized all his emergency equipment throughout the pursuit and operated his vehicle in a responsible manner.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during nighttime hours with clear skies and a dry road surface. The traffic condition at the time of the pursuit would be described as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid apprehension. The suspect drove at high speeds and ran a red traffic signal. The suspect's actions put the public's safety and all involved in jeopardy.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid apprehension, drove in the emergency lanes and improperly passed other motorists. The suspect's actions put the public's safety and all involved in jeopardy. These facts necessitated the pursuit be brought to a conclusion in order to safeguard the public from harm.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator fled at speeds in excess of 100 miles per hour and disregarded traffic control devices. The violator showed no regard for the safety of himself or others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: TFC Edwards executed a PIT maneuver in order to terminate the pursuit. There were no units ahead of the pursuit to deploy Stop Sticks, and the Box-In maneuver was not feasible due to the reckless nature of the violator's driving. The recklessness of the violator's driving posed a great risk to himself and others, and it necessitated that the pursuit be terminated as soon as practical. TFC Edwards' decision to implement the PIT maneuver was objectively reasonable in order to safeguard life and preserve public safety.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The suspect's vehicle sustained disabling damage as a result of the PIT and subsequent crash. TFC Edwards' vehicle sustained only minor damage.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: This was TFC Edwards' third pursuit during his career as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A

If Yes, explain: TFC Edwards has received E.V.O.C., Advanced E.V.O.C. and Pursuit-Ending Tactics Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A

If Yes, explain: TFC Edwards communicated and commentated well during the pursuit.

2. Areas for improvement.

☐ N/A

If Yes, explain: TFC Edwards needs to improve in the area of verbally clearing intersections. Verbally clearing intersections reassures his actions and re-enforces his observations, which in some instances can't be captured by the in-car video recording system.

3. Other considerations.

☐ N/A

If Yes, explain: At the conclusion of the pursuit, the suspect exited his vehicle and fled on foot. TFC Edwards drew and deployed his departmental issued TASER. A Use of Force Report was completed.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A

If Yes, explain:

Lt. T. L. Nichols #36
Reviewing Officer

Lt. T. L. Nichols #36

2/14/2024
Date